

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 07/15/2026

Case #	Case Name	Tentative
01348724	Rivas –Probate	TENTATIVE RULING Case: Rivas – Probate 01348724 Calendar No.: 1 Date: 07/15/2026 MOTION TO REQUEST ABATEMENT OF ALL PROCEEDINGS (ROA 520) Pursuant to Probate Code section 854, Petitioner Sarai Mejia Villa ("Petitioner") moves for an order to abate all proceedings currently pending in the instant Probate Action until the outcome of the Civil Action she commenced on 3/21/23 (O.C.S.C. Case No. 30-2023-01314626). <u>Abatement of All Pending Proceedings</u> Probate Code section 854 provides as follows: If a civil action is pending with respect to the subject matter of a petition filed pursuant to this chapter this part¹ and jurisdiction has been obtained in the court where the civil action is pending prior to the filing of the petition, upon request of any party to the civil action, the court shall abate the petition until the conclusion of the civil action. This section shall not apply if the court finds that the civil action was filed for the purpose of delay.